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File No.: EXP202306428

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On April 20, 2023, a complaint was filed with the Spanish Agency for Data Protection against Mr. A.A.A. with NIF ***NIF.1 (hereinafter, the respondent).

The reasons for the complaint are as follows:

The complainant states that he is a neighbor of the respondent and that the latter has installed surveillance cameras at his residence which, due to their location and orientation, are capable of capturing images of areas outside the property where the respondent's residence is located, potentially capturing images of the complainant's residence and a path that has an easement for access to the complainant's residence.

The complainant provides a copy of the representation submitted to the Spanish Agency for Data Protection, a copy of his ID, registration documentation regarding the ownership of the properties of the parties, images of the camera's location, and communications sent to the respondent.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by certified postal mail, was returned as "absent"; the forwarding was reiterated by the same means, and notification was made on July 20, 2023.

THIRD: On July 20, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: On August 14, 2023, a response was received to the information request, in which the respondent indicates the following:

"FIRST. - That in the residence located at ***ADDRESS.1, despite being my property, only my mother (also an owner) and my brother reside there, with the latter being responsible for the surveillance system.

SECOND. - That the residence where the surveillance system has been installed is a detached single-family home affected as a servient estate in favor of the property located at ***ADDRESS.2 (dominant estate) to an easement for passage for people and vehicles approximately five meters wide and approximately 31 meters long along its northern boundary and 28 square meters along its southern boundary, which allows access from ***ADDRESS.3 to the dominant estate. Attached as DOC. No. ONE is a note from the property registry detailing the easement.

THIRD. - That due to the damages suffered recently both to the property of the appearing party and to the persons residing therein, a total of 4 cameras have been installed, focusing only on private areas of the residence, and whose images can only be viewed through the mobile phone of the respondent. Attached as DOC. No. TWO are photographs of the devices and as DOC. No. THREE are photographs showing that the areas within the field of vision of the cameras are private property.

FOURTH. - As can be verified with the provided photographs, the cameras only capture images of the private areas of the appearing party's residence, except for the portion of the easement minimally necessary for the intended security purpose. This is motivated, as we have already explained, by the events that have occurred recently, which have even been the subject of a corresponding criminal complaint.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Processing for surveillance purposes

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Article 22.1 and 2 of the LOPDGDD states the following:

"1. Natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of individuals and property, as well as their facilities.

2. Images of public roads may only be captured to the extent that it is essential for the purpose mentioned in the previous section. However, it will be possible to capture images of public roads to a greater extent when necessary to ensure the safety of strategic property or facilities or infrastructures related to transportation, without in any case allowing the capture of images from inside a private home."

Article 5 of the GDPR, "Principles relating to processing," provides in paragraph 1:

"Personal data shall be: processed lawfully, fairly, and transparently in relation to the data subject ('lawfulness, fairness, and transparency')"

The GDPR regulates the lawfulness of processing in its Article 6, which determines in paragraph 1 under which circumstances the processing of third-party data is lawful:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) processing is necessary to protect vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

III

Claimed Facts

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The complaint concerns the installation of a video surveillance system in a residence located opposite the residence that, due to its location and orientation, is capable of capturing images of areas outside

the property where the residence of the complained party is located, potentially capturing images of the residence of the complaining party and a path where there is an easement for access to the residence of the complaining party.

An analysis of the documents that make up the administrative file reveals the following points relevant to the matters at hand:

The photographs submitted by both parties demonstrate that there is a system of video cameras.

The photographs sent by the complained party verify that the captured images are confined to the private areas of their residence, except for the portion of the easement minimally necessary for the intended security purpose.

In light of the facts presented, the reality of which is evidenced in the documentation in the file, the following conclusion is reached:

In this case, considering the circumstances involved, it can be stated that the data processing has been adequate and relevant concerning the pursued purpose (data minimization principle). This takes into account the orientation of the cameras, which allows for verification that it follows the usual parameters in terms of video surveillance aimed at ensuring the safety of individuals, property, or facilities.

The complained party does not need to obtain the consent of the complaining party to install a video surveillance system in their residence, as the legal basis for the data processing carried out through video surveillance does not rely on the consent of the affected parties.

Given that the purpose of the video surveillance activity is to ensure the safety of individuals, property, and facilities, it fulfills a mission of public interest. Therefore, the legal basis for the data processing carried out through the video surveillance cameras installed in the residence of the complaining party is expressly covered in paragraph e) of Article 6.1. of the GDPR: "processing is necessary for the performance of a task carried out in the public interest."

IV

Conclusion

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

In accordance with the above, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

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FIRST: TO PROCEED WITH THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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